

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000062

L.Mendez

Recorded On: 5/7/2026 11:49:07 AM

Number of Pages: 1

NF Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number 00000000062

Receipt Number 1984218

Fees \$36.00

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

## **APPOINTMENT OF SUBSTITUTE TRUSTEE and NOTICE OF TRUSTEE'S SALE**

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

The undersigned, in accordance with Texas Property Code §51.0076, as attorney-in-fact for the Mortgagee or Mortgage Servicer, hereby removes the original trustee and any and all successor substitute trustees, and appoints in their stead: Nestor Solutions, LLC, Auction.com, LLC, Xome Inc., Tejas Corporate Services, LLC, NFPDS-TX LLC, Agency Sales and Posting LLC, Abstracts/Trustees of Texas, LLC, Resolve Trustee Services, LLC, or any one of them, c/o Nestor Solutions, LLC, 214 5<sup>th</sup> Street, Suite 205, Huntington Beach, California 92648, as Substitute Trustee, to hereafter exercise all powers and duties conferred upon the original trustee under the Deed of Trust, and further authorizes and directs the Substitute Trustee to conduct and execute the remedies provided to the beneficiary therein.

**1. Date, Time, and Place of Sale.**

**Date:** 7/7/2026

**Time:** The earliest time the sale will begin is 10:00 AM, or within three (3) hours after that time.

**Place:** El Paso County Courthouse, Texas, at the following location: 4100 E. PAISANO DR, EL PASO, TX 79905 THE EL PASO COUNTY COLISEUM, 4100 E. PAISANO DR, EL PASO, TX 79905  
, or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioners Court.

**2. Property To Be Sold.** LOT 17, BLOCK 10, SUN VALLEY ADDITION SECTION TWO, AN ADDITION TO THE CITY OF EL PASO, EL PASO COUNTY, TEXAS, ACCORDING TO MAP OR PLAT THEREOF RECORDED IN VOLUME 9, PAGE(S) 26, OF THE PLAT RECORDS OF EL PASO COUNTY, TEXAS.

Commonly known as: 10365 REDWOOD ST EL PASO, TX 79924

**3. Instrument to be Foreclosed.** The instrument to be foreclosed is the Deed of Trust dated 2/5/2007 and recorded in the office of the County Clerk of El Paso County, Texas, recorded on 2/8/2007 under County Clerk's File No 20070012688, in Book -- and Page -- in the Real Property Records of El Paso County, Texas.

|                            |                                                          |
|----------------------------|----------------------------------------------------------|
| <b>Grantor(s):</b>         | <b>FERNANDO VILLALOBOS AND SPOUSE, SILVIA VILLALOBOS</b> |
| <b>Original Trustee:</b>   | DUDLEY BEADLES                                           |
| <b>Original Mortgagee:</b> | WELLS FARGO BANK, NATIONAL ASSOCIATION                   |
| <b>Current Mortgagee:</b>  | Freedom Mortgage Corporation                             |
| <b>Mortgage Servicer:</b>  | Freedom Mortgage Corporation                             |

4. **Terms of Sale.** The sale will be conducted as a public auction to the highest bidder for cash, subject to the provisions of the Deed of Trust permitting the Mortgagee thereunder to have the bid credited to the note up to the amount of the unpaid debt secured by the Deed of Trust at the time of sale. Pursuant to §51.009 of the Texas Property Code, the property will be sold in "AS IS, WHERE IS" condition, without any express or implied warranties, except as to the warranties of title (if any) provided for under the Deed of Trust.

5. **Notice Regarding Federal Reporting Requirements.** Please be advised that the highest bidder ("purchaser") at this trustee's sale may be required to provide information, documentation and/or certification as mandated by applicable federal law, and entity and trust purchasers should be prepared to provide beneficial ownership information as may be required by federal reporting requirements effective for transfers of residential real property to covered transferees on or after 3/1/2026. If applicable, the required information must be provided to the trustee before a trustee's deed will be issued for covered transfers. Additional information regarding these regulations and the required transferee information and certifications can be found at [https://www.fincen.gov/rre-faqs#D\\_5](https://www.fincen.gov/rre-faqs#D_5) or <https://www.federalregister.gov/documents/2024/08/29/2024-19198/anti-money-laundering-regulations-for-residential-real-estate-transfers>.

6. **Obligations Secured.** The Deed of Trust provides that it secures the payment of the indebtedness and obligations described therein (collectively, the "Obligations"), including, but not limited to: (1) the promissory note in the original principal amount of \$62,026.00, executed by FERNANDO VILLALOBOS AND SPOUSE, SILVIA VILLALOBOS, and payable to the order of WELLS FARGO BANK, NATIONAL ASSOCIATION; (2) all renewals and extensions of the note; and (3) any and all present and future indebtedness of the Trustor(s) to the current holder of the Obligations, secured by the Deed of Trust. Default has occurred in the payment of the indebtedness, and the same is now wholly due and payable. The owner and holder of the Obligations has requested that the Substitute Trustee sell the Property to satisfy the indebtedness.

7. **Mortgage Servicer Information.** The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property Code §51.0025, the Mortgage Servicer is authorized to collect the debt and administer any resulting foreclosure of the lien securing the Property referenced above. Freedom Mortgage Corporation as Mortgage Servicer, represents the current mortgagee, whose address is:

c/o Freedom Mortgage Corporation  
11988 EXIT 5 PKWY BLDG 4  
FISHERS IN 46037-7939  
Phone: (855) 690-5900

**Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active-duty military service to the sender of this notice immediately.**

NESTOR SOLUTIONS, LLC, as attorney-in-fact for  
FREEDOM MORTGAGE CORPORATION



By: \_\_\_\_\_

Christopher K. Baxter  
Senior Vice President  
Texas Bar No. 90001747  
214 5th Street, Suite 205  
Huntington Beach, California 92648  
Phone: (888) 403-4115 Fax: (888) 345-5501

Dated: 5/6/2026

*Beverly Mithisen*  
*BEVERLY MITHISEN*

For sale information visit: <https://www.xome.com> or Contact (800) 758-8052